

TENTATIVE RULING FOR JULY 8, 2026

Department R12 - Judge Kory Mathewson

Ortiz v. JEP Capital, Inc. et al – CIVSB2301598

Motion: Motion to Compel Further Responses to Form Interrogatories (Set One) from Philadelphia Consolidated Holding Corp.
Movant: Plaintiff Mynor Ortiz dba Atlantis Water Systems
Respondent: Defendant Philadelphia Consolidated Holding Corp.
RULING: Motion to Compel Further Responses to Form Interrogatories (Set One) from Philadelphia Consolidated Holding Corp. is CONTINUED to August 4, 2026.

Plaintiff brings his motions under Code of Civil Procedure section 2030.300 to compel further responses to the form interrogatories (FROGs) propounded on April 14, 2025. The disputed FROGs are Nos. 1.1, 3.1, 3.6, 3.7, 15.1, 50.1, 50.2, 50.3, 50.4, 50.5, and 50.6.

Plaintiff motions for the court to compel Philadelphia to provide further responses to the subject disputed interrogatories, arguing Philadelphia has failed to rectify its deficient responses despite multiple meet and confer attempts by Plaintiff. Plaintiff further requests sanctions.

In its Opposition, Philadelphia presents the same basic argument as HCC Casualty and Tokio Holdings did in similar motions to compel. The court continued the HCC Casualty motion heard on June 16, 2026 to July 6, 2026 for a further meet and confer. Further responses were served and the Court deemed the motion moot. The Court is taking the same action now and continues this motion for the parties to engage in a further meet and confer in light of the issue being raised by Philadelphia and the circumstances not demonstrating a sufficient meet and confer occurred with Philadelphia's new counsel before the motion was filed.

The level of effort at informal resolution which satisfies the "reasonable and good faith attempt" standard depends upon the circumstances. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 432-433) A determination of whether an attempt at informal resolution is adequate involves the exercise of discretion and judges have broad powers and responsibility to determine what measure and procedures are appropriate. (*Id.* at p. 431.)

Here, Plaintiffs counsel's "detailed meet and confer letter" attached as Exhibit D to Hernandez's declaration fails to set forth any specific disputed requests. The "detailed" letter only substantively discusses the subject responses deficiencies in one or two sentence in the first paragraph and Philadelphia is only discussed in conjunction with the other Carrier Defendants. Further, Hernandez's supplemental declaration filed with the reply asserts for the first time that she spoke to Philadelphia's current counsel was on February 18, 2026, the day before the motion was filed. (Hernandez Reply Decl. ¶¶ 3-9.) Plaintiff's counsel states that Philadelphia's new counsel did not offer to supplement responses or continue the motion deadline. But in a meet and confer that Plaintiff's counsel sent on January 5, 2026 to Defendant's prior counsel, Plaintiff's counsel stated that to avoid unnecessary motion practice, she was open to discussing a revised motion deadline to allow for completion of the responses by incoming counsel. (Hernandez Decl. Exh. G.) It is unclear why Plaintiff's counsel did not request a motion deadline extension with new counsel to avoid motion practice. In addition, in opposition, Philadelphia contends that it is

informed that Plaintiff's counsel alleges a meet and confer occurred on February 18, 2026, before the motion was filed. It argues that if this is the case, there is no reason this was not raised as part of the motion. It also argues this hardly qualifies as a good faith meet and confer, especially considering it was the first meet and confer with new counsel. (Opp. p. 5, fn. 3.) It is unclear, however, why Philadelphia's current counsel did not submit a declaration with the opposition discussing the February 18 meet and confer.

Both parties are ordered to file a joint declaration as to the meet and confer efforts no later than 5 days prior to the next hearing. The Court reserves the issue of sanctions till then.

Dated: July 8, 2026

Judge Kory Mathewson